



United States
Attorney's Office
District of Massachusetts



Florida Pharmacy Pleads Guilty to Health Care Fraud and Agrees to Pay More than \$1 Million Settlement

Thursday, April 10, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – A Florida-based pharmacy, OHM Pharmacy Services, aka “Benzer,” aka “Auburndale,” has agreed to plead guilty to one count of health care fraud; pay restitution of \$82,000; and pay \$1,018,000 to resolve False Claims Act violations.

According to OHM’s admissions in today’s global resolution of criminal charges and civil claims, the pharmacy dispensed Evzio, one of several naloxone products on the market indicated for use on an emergent basis in the case of opioid overdose. Due to Evzio’s high price, insurers (including Medicare Part D plans) frequently required that health care providers submit prior authorization requests before they approved coverage. OHM completed prior authorization forms in place of prescribing physicians, and in some instances OHM personnel signed the prior authorization forms without the physician’s authorization and submitted information to insurers that made it appear as though a physician, and not OHM, was submitting the information. Moreover, OHM also submitted prior authorization requests to insurers, including Medicare Part D plans, that contained false information. For example, OHM staff filled out and submitted dozens of Evzio prior authorization request forms that falsely asserted that patients had previously tried and failed to successfully use Narcan or naloxone.

“OHM deliberately falsified prior authorization requests to ensure that Medicare would reimburse its fraudulent claims for Evzio. It took advantage of the need for naloxone products to combat the opioid crisis by making up information on insurance forms that it knew would be necessary to support reimbursement,” said U.S. Attorney Leah Foley. “We

will aggressively pursue any attempts to defraud Medicare of taxpayer funds.”

“OHM Pharmacy Services admitted today to abusing its dispensing privileges and fleecing taxpayer-funded health care programs in the process,” said Jodi Cohen, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division. “Fraudulent schemes like this one are not only unethical, but illegal, and drive up the cost of health care for all of us. Anyone who engages in criminal conduct to maximize profits should know the FBI and our partners will identify you and ensure that you’re held accountable.”

“OHM’s falsification of prior authorization requests subverted an important safeguard against unnecessary Medicare costs,” said Roberto Coviello, Special Agent in Charge of the U.S. Department of Health and Human Services, Office of Inspector General. “This fraud scheme was an attempt to capitalize on the opioid crisis at the expense of taxpayers who fund the Medicare program, and we will not tolerate such conduct.”

In connection with the resolution, Benzer entered into an integrity agreement (IA) with the U.S. Department of Health & Human Services Office of Inspector General (HHS-OIG). The IA requires, among other things, that OHM implement measures to ensure that its submission of claims for pharmaceutical products complies with applicable law relating to prior authorizations.

The civil settlement concludes the government’s resolution of claims brought under the *qui tam* or whistleblower provisions of the False Claims Act by a former employee of kaléo Inc., Evzio’s manufacturer. The *qui tam* case is captioned *United States ex rel. Socol v. Benzer Pharmacy Holding, LLC, et al.*, No. 18-cv-10050-RGS (D. Mass.). As part of the civil resolution with OHM, the whistleblower will receive \$285,040 of the civil settlement amount.

In 2021, the U.S. Attorney’s Office announced settlements with [kaléo Inc.](#) for \$12.7 million and with [other pharmacies](#) for \$1 million relating to their submission of false claims for Evzio. In 2022, the U.S. Attorney’s Office announced a \$1.31 million deferred prosecution agreement and civil settlement with [another pharmacy](#).

The global resolution obtained in this matter was the result of a coordinated effort between the U.S. Attorney’s Office; Roberto Coviello, Special Agent in Charge, Health and Human Services-Office of Inspector General; the Federal Bureau of Investigations; Department of Defense Criminal Investigative Service; Office of Personnel Management, Office of Inspector General; and the U.S. Postal Service Office of the Inspector General.

The matter was handled by Assistant U.S. Attorney Abraham R. George, Chief of the Civil Division, Assistant U.S. Attorney Mackenzie A. Queenin, Deputy Chief of the Healthcare Fraud Unit and Assistant U.S. Attorney Lauren A. Graber, Deputy Chief of the Narcotics and Money Laundering Unit.

Attachment

[USA v. OHM Benzer Civil Settlement Agreement.pdf](#) [PDF, 758 KB]

Topic

HEALTHCARE FRAUD

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July 31, 2026



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